

TENTATIVE RULINGS

West Coast Drywall Construction Inc.

vs.

BLH Construction Co., et al.

25CV002794

[Plaintiff's Motion to Deem Admissions in Request for Admissions](#)

[Plaintiff's Motion to Compel Defendant's Responses to Discovery](#)

Hearing Date: July 24, 2026 (continued from May 29, 2026)

At the last hearing on May 29, 2026, Plaintiff's counsel William Woolman stated that he had not heard from defense counsel Christopher Warne and believes Mr. Warne may have passed away. The State Bar has confirmed Mr. Warne's passing:

Name	Status	Number	City	Admission Date
Warne, Christopher P.	Deceased	246479	Marina del Rey	December 2006
Warne, Christopher Patrick	Deceased	246479	Marina del Rey	December 2006

PARTIES TO APPEAR to discuss case status and how Plaintiff wishes to proceed with its discovery motions in light of Mr. Warne's passing and the Court's rulings issued on May 28, 2026, which are attached.

Plaintiff's Motion to Deem Admissions in Request for Admissions

West Coast Drywall Construction Inc. ("Plaintiff") filed a motion asking the Court to treat the facts in their first set of Request for Admissions ("RFA") to BLH Construction Co. ("Defendant") as admitted and to impose monetary sanctions. The evidence supporting the motion and sanctions request is in the Declaration of William M. Woolman. However, Mr. Woolman's declaration accompanying the deemed-admitted motion duplicates his declaration supporting Plaintiff's other motion to compel Defendant's responses to interrogatories and document requests. Therefore, the Court cannot verify the facts in the memorandum supporting the deemed-admitted motion, including when the RFA was electronically served, whether Defendant, despite the extension, has yet to respond to the RFA, and the reasonableness of Plaintiff's request for monetary sanctions.

Accordingly, the hearing is **CONTINUED** to June 12, 2026, at 8:30 a.m. in Department 14 to allow Plaintiff to file and serve by June 5th the correct declaration in support of the deemed-admitted motion.

Plaintiff's Motion to Compel Responses to Discovery

West Coast Drywall Construction Inc. ("Plaintiff") filed a motion to compel Defendant BLH Construction Co. ("Defendant") to respond to Plaintiff's first set of Form Interrogatories, Special Interrogatories, and Request for Production of Documents (collectively, "Discovery"). Plaintiff also requests \$1,075 in monetary sanctions. The unopposed motion is **GRANTED**, and Plaintiff's request for monetary sanctions is **GRANTED IN PART AND DENIED IN PART**.

Factual and Procedural Summary.

On May 30, 2025, Plaintiff filed a Complaint asserting six causes of action against Defendant. [Complaint, *passim*.] In general, Plaintiff claims it is owed retention payments from Defendant for two construction projects. [See *id.* at ¶ 9 and Exh. B.]

On October 15, 2025, Plaintiff served Defendant with its first set of Discovery. [Woolman Decl. at ¶ 3 and Exhs. A-D.] Ultimately, Plaintiff agreed to extend Defendant's response deadline to December 5. [*Id.* at ¶¶ 4-5 and Exh. E.] As of the filing of the motion on April 9, 2026, Defendant has not yet served its responses to the Discovery. [*Id.* at ¶¶ 6-7.] To date, Defendant has not opposed Plaintiff's motion to compel.

Legal Standards.

Generally, the party that receives the discovery must respond to each question or demand separately, under oath, within 30 days of service. [Code Civ. Proc. §§ 2030.010, 2030.030, 2030.210, 2030.260, 2031.010, 2031.030, 2031.210, and 2031.260.] If no response is received, the requesting party may file a motion for an order compelling a response and for monetary sanctions. [Code Civ. Proc. §§ 2030.010, 2030.290, 2031.010, and 2031.300.] In such cases, the requesting party is not required to attempt informal resolution before filing the motion. [Code Civ. Proc. §§ 2030.290 and 2031.300; *Sinaiko Healthcare Consulting, Inc. v. Pacific Healthcare Consultants* (2007) 148 Cal.App.4th 390, 411.] There is no time limit for filing a motion to compel if responses have not been served. [Code Civ. Proc. §§ 2030.290 and 2031.300; *Sinaiko*, 148 Cal.App.4th at 410-411.]

Failure to respond in a timely manner waives all objections to interrogatories or document requests. [Code Civ. Proc. §§ 2030.290, 2031.300.] An unverified response is the equivalent of no response at all. [*Appleton v. Superior Court* (1988) 206 Cal.App.3d 632, 636.] If a motion to compel response is filed and the demanding party properly requests monetary sanctions, the Court "shall" impose a monetary sanction against the losing party unless it determines that the party made or opposed the motion "with substantial justification" or other reasons make the sanction "unjust." [Code Civ. Proc. §§ 2030.290, subd. (c), and 2031.300, subd. (c).]

Discussion.

Plaintiff's motion is unopposed, and the Court has not been informed whether Defendant provided complete, objection-free, and verified responses to the Discovery before issuing this Tentative Ruling. Therefore, Plaintiff's motion to compel is **GRANTED**.

Despite the extension, Defendant failed to respond to an authorized method of discovery. There is no substantial justification for Defendant's conduct, and monetary sanctions are justified. [Code Civ. Proc. § 2023.010, subds. (d) and (i).] The Court has discretion to impose "reasonable" monetary sanctions. [*Cornerstone Realty Advisors, LLC v. Summit Healthcare REIT, Inc.* (2020) 56 Cal.App.5th 771, 793-794; Code Civ. Proc. § 2023.030, subd. (a).]

Here, Plaintiff seeks \$1,075 in sanctions, which includes a \$525 hourly rate for 1 hour of lead attorney William Woolman's work related to the motion, and a \$275 hourly rate for associate Mattie Hodges' 2 hours on similar tasks. The hourly rates are reasonable, but the billed hours are excessive, especially for this type of motion. Given the nature and complexity of the motion, the Court determines that two hours of total work are appropriate. Therefore, the Court **PARTIALLY GRANTS** Plaintiff's request for attorney fees, totaling \$675, which covers 30 minutes of work from Mr. Woolman (\$262.50) and 90 minutes from Ms. Hodges (\$412.50).

Conclusion.

Plaintiff's motion is **GRANTED**. Within 15 days of the Notice of Entry of the signed order, Defendant shall serve complete, verified, and objection-free responses to Plaintiff's Discovery.

Plaintiff's request for monetary sanctions is **GRANTED IN PART**. Defendant and its counsel, jointly and severally, shall pay a total of \$675 in reasonable sanctions, payable to Sagaser, Watkins & Wieland PC, within 15 days of the Notice of Entry of the signed Order.

Plaintiff shall prepare the Proposed Order consistent with this Tentative Ruling.